

Level of Education, General Education Minimum and Curriculum Act

Promulgated, SG No. 67/27.07.1999, effective 27.07.1999, amended and supplemented, SG No. 90/24.09.2002, effective 24.09.2002, SG No. 95/8.10.2002, effective 8.10.2002, SG No. 29/31.03.2003, effective 31.03.2003, SG No. 40/14.05.2004, No. 41/19.05.2006, SG No. 105/22.12.2006, SG No. 50/30.05.2008, supplemented, SG No. 36/15.05.2009, amended, SG No. 74/15.09.2009, effective 15.09.2009

Text in Bulgarian: Закон за степента на образование, общообразователния минимум и учебния план

Chapter One GENERAL PROVISIONS

Article 1. This Act shall regulate the state educational requirement for the level of education, the general education minimum and the curriculum in the system of public education.

Article 2. The state educational requirement referred to in Article 1 shall determine the conditions and the procedure for completing one level of education and passing to the next level, as well as the characteristics of the general education minimum and the curriculum.

Chapter Two LEVEL OF EDUCATION

Article 3. (1) The levels of education shall ensure the necessary level of learning, as well as succession and continuity of education.

(2) The levels of education shall be basic education and secondary education.

(3) The basic level shall consist of two stages:

1. elementary - with a duration of four years (grades 1st through 4th);

2. primary - with a duration of four years (grades 5th through 8th);

(4) The secondary level shall consist of one stage - secondary, with a duration of four years (grades 9th through 12th).

Article 4. A duration of the levels different from the one referred to in Article 3, Paragraphs 3 and 4 shall be determined with an ordinance issued by the Minister of Education, Youth and Science in the cases when the education takes place:

1. in forms of education different from the regular one;

2. (supplemented, SG No. 95/2002) in profiled and professional secondary schools, in sports schools and in art schools;

3. in specialised schools for students with chronic diseases and specific educational needs.

4. (new, SG No. 95/2002) in schools with classes for vocational training after 6th grade.

Article 5. The completion of the respective level of education shall guarantee the acquisition of the general education minimum, as well as knowledge and skills corresponding to the interests and the individual capabilities of the students.

Article 6. (1) Upon completion of the elementary level of basic education, a certificate for completed 4th grade shall be awarded.

(2) Basic education shall be acquired after completion of the primary stage and shall be ascertained with a certificate.

(3) The state educational requirements referred to in Article 16, items 5 and 10 of the Public Education Act shall approve samples of the documents referred to in Paragraphs 1 and 2.

(4) Upon completion of their basic education, students shall have the right to continue to the next level of education or to vocational training, as well as to practice professions for which basic education is required.

Article 7. (1) (Amended, SG No. 90/2002, amended, SG No. 40/2004, supplemented, SG No. 105/2006) Secondary education shall be acquired after successful completion of 12th grade and passing of two state matriculation examinations on subjects or series of subjects studied in secondary school, one of which in Bulgarian language and literature, and the other - at a choice of the student among the subjects Foreign Languages, Mathematics, Physics and Astronomy, Biology and Health Education, Chemistry and Environmental Studies, History and Civilizations, Geography and Economics and the Philosophy series of subjects studied in the classes of the obligatory general education studies.

(2) Two state examinations for professional qualification in compliance with the state educational requirements referred to in Article 16, item 7 of the Public Education Act shall be taken for acquisition of vocational education in addition to the state matriculation examinations referred to in Paragraph 1.

(3) (Supplemented, SG No. 90/2002; amended, SG No. 40/2004, amended, SG No. 105/2006) The state matriculation examinations referred to in Paragraph 1 shall be obligatory and exemption from them shall not be allowed. Students may, at their own choice, take state matriculation examinations in subjects or series of subjects listed under paragraph 1 selected by the student him or herself.

(4) (New, SG No. 95/2002) Persons who have passed the state matriculation examinations may be admitted to higher schools without an entrance examination upon a decision of the academic council of the respective higher school.

(5) (Previously Paragraph 4 - amended, SG No. 95/2002; amended, SG No. 40/2004) Students who have successfully completed 12th grade and have not taken state matriculation examinations shall receive, at their own choice, a certificate for completed secondary education

giving them the right to continue with vocational training for acquisition of professional qualification.

(6) (Previously Paragraph 5 - SG No. 95/2002; repealed, SG No. 40/2004)

(7) (New, SG No. 41/2006) The terms and conditions of holding state matriculation examinations shall be stipulated by the Public Education Act and the secondary legislation related to it.

(8) (Renumbered from Paragraph 6, SG No. 95/2002, renumbered from Paragraph 7, SG No. 41/2006) The organisation and the content of the state matriculation examinations for acquisition of professional qualification shall be determined with the Vocational Education and Training Act.

Chapter Three

GENERAL EDUCATIONAL MINIMUM

Section I

Objectives and content of general education

Article 8. (1) General education shall be determined by the purpose of the Bulgarian school to ensure to all Bulgarian citizens an opportunity to develop themselves.

(2) General education shall be built on the principles of respecting:

1. the basic human rights;
2. children`s rights;
3. the traditions of Bulgarian culture and education;
4. the achievements of world culture;
5. the values of civil society;
6. the freedom of consciousness and the freedom of thought.

Article 9. The basic objectives of general education shall be:

1. to facilitate the physical and spiritual development of students, their successful orientation, adaptation and realisation in society.

2. to create conditions for the formation of value orientations connected with the feeling of Bulgarian national identity, respect to others, compassion and civil responsibility;

3. to create conditions for development of needs, interests and intentions for life-long study, education and self-improvement.

Article 10. General education in the Bulgarian school shall be realised by studying

subjects grouped in the following cultural and education fields:

1. Bulgarian language and culture;
2. foreign languages;
3. mathematics, informatics and information technologies;
4. (Amended, SG No. 95/2002) social sciences, civil education and religion;
5. natural sciences and ecology;
6. arts;
7. household and technologies;
8. physical culture and sports.

Article 11. (1) The cultural and education fields shall correspond to the formulated objectives of general education and shall provide opportunity for choice within the curriculum.

(2) Each cultural and education field shall ensure interconnectivity between the individual subjects.

Section II

Characteristics of the general education minimum

Article 12. (1) The general education minimum shall be the basis of general education. It shall include obligatory knowledge and skills necessary for the successful realisation of students in the next level of education.

(2) (Amended, SG No. 95/2002) The general education minimum for the elementary and primary stages of primary education shall be uniform and obligatory for all schools.

(3) (New, SG No. 95/2002) The general education minimum for the secondary level of education shall include:

1. the cultural and education fields referred to in Article 10, items 1, 2, 3, 4, 5 and 8 - for all types of schools;
2. the cultural and education fields referred to in Article 10, items 1, 2, 3, 4, 5, 6 and 8 - for the schools referred to in Article 26, Paragraph 1, items 4, 5 and 6 of the Public Education Act.

Article 13. (1) (Previous text of Article 13 - SG No. 95/2002) The distribution of school time among the subjects with a view to achieving the general education minimum for each grade, stage and level shall be determined with an ordinance issued by the Minister of Education, Youth and Science.

(2) (New, SG No. 95/2002) The conditions and the procedure for including new elements

in the curricula and programmes and for the schooling based on them, as well as for their updating, shall be determined with an ordinance issued by the Minister of Education, Youth and Science.

Article 14. The content of the general education minimum determined pursuant to Article 13 may be updated every 4 years.

Chapter Four CURRICULUM

Article 15. (1) The structure of the curriculum shall comprise three types of education: compulsory, mandatorily elective and optional.

(2) Compulsory education shall ensure the achievement of the general education minimum.

(3) (Amended, SG No. 95/2002) Mandatorily elective education shall ensure additional schooling in subjects from the cultural and education fields referred to in Article 10, and/or the vocational training corresponding to the interests and individual capabilities of the students and of the school. The mandatorily elective education shall include the study of the mother tongue and religion.

(4) (Amended, SG No. 95/2002) Optional education shall ensure schooling in fields and curricular and extracurricular activities proposed by the school and chosen by the students which may be also outside of the cultural and education fields referred to in Article 10. It shall be with a duration of up to four classes weekly for all grades according to the curriculum and shall not be obligatory for the students.

Article 16. (1) The compulsory classes shall include the compulsory and the mandatorily elective education.

(2) (Amended, SG No. 40/2004) The compulsory number of classes in one study week shall be:

1. twenty-two classes - in 1st and 2nd grade;
2. twenty-five classes - in 3rd and 4th grade;
3. thirty classes - in 5th through 8th grade inclusive;
4. thirty-five classes - in 9th through 12th grade.

(3) The ratio between the compulsory and the mandatorily elective education shall depend on the stage and the level of education. Compulsory schooling shall be:

1. for the elementary stage - 90% of the compulsory classes;
2. for the primary stage - 80 to 90% of the compulsory classes;
3. for the secondary level - from 45 to 80% of the compulsory classes.

(4) (New, SG No. 40/2004) Each school week, in addition to the obligatory classes referred to in Paragraph 2 shall include one class in the Physical Education and Sport subject which shall be used for organising and holding sports activities and activities in the open air. The inclusion of this class shall not affect the ratio referred to in Paragraph 3.

Article 17. The curriculum shall contain:

1. the names of the subjects included in the compulsory, mandatorily elective and optional schooling;
2. the distribution of the subjects in each grade;
3. (amended, SG No. 95/2002) the annual and the weekly number of classes for studying the subjects;
4. schedule of the academic year.
5. (new, SG No. 95/2002) description of the organisation of schooling in the respective school.

Article 18. (1) Each school shall develop its curriculum in compliance with the provisions of this Act.

(2) (Supplemented, SG No. 95/2002) The school curriculum shall determine the subjects of the mandatorily elective and optional education and the distribution of the classes among them for the entire educational level. It shall be consistent with the interests of the students and the resources of the school.

(3) (Amended, SG No. 95/2002) The school curricula of profiled secondary schools, profiled classes in the secondary general education schools, the professional secondary schools, of the art schools and of the sport schools shall be developed on the basis of curricula approved by the Minister of Education, Youth and Science.

(4) (New, SG No. 50/2008) The school curricula cannot define conditions and procedure for the graduation of educational stages and levels.

(5) (Amended, SG No. 95/2002, renumbered from Paragraph 4, SG No. 50/2008) The school curricula shall be adopted with a decision of the pedagogical council of the school and shall be approved by:

1. the head of the inspectorate of education - for municipal schools and for state schools financed through the budget of the Ministry of Education, Youth and Science;
2. the respective minister or head of administrative body in coordination with the Minister of Education, Youth and Science - for state schools financed by the budget of another ministry or administrative body.

Article 19. (1) The curricula of special schools shall be appropriate for the health status

or the social status of the students.

(2) The curricula referred to in Paragraph 1 shall be approved by the Minister of Education, Youth and Science.

(3) The conditions and the procedure for acquisition of basic or secondary education in the special schools shall be regulated in the state educational requirement referred to in Article 16, item 8 of the Public Education Act.

Article 20. (Amended, SG No. 95/2002; amended, SG No. 40/2004) (1) (Supplemented, SG No. 36/2009) Students shall have the right to complete their education at a particular stage of education under the school curriculum which was effective when they began their studies in that school, unless otherwise provided for by law.

(2) (New, SG No. 50/2008) The right under paragraph 1 does not concern the conditions and procedure for graduation of the respective educational stage.

(3) (Renumbered from Paragraph 2, SG No. 50/2008) Persons who have interrupted their education shall continue it under the school curriculum which is in effect during the academic year in which the education continues.

SUPPLEMENTARY PROVISION

§ 1. The state and the municipal budgets shall ensure the financing of the compulsory, the mandatorily elective and the optional education in state and municipal schools.

TRANSITIONAL AND FINAL PROVISIONS

§ 2. (1) (Previous § 2 - SG No. 29/2003) For the 1999 - 2000 academic year the education minimum shall be introduced from 9th grade.

(2) (New - SG No. 29/2003) Students who were in 9th grade during the 1999 - 2000 academic year, including those admitted during the 1998 - 1999 academic year to classes with intensive studying of a foreign language with admission after 7th grade in profiled secondary schools, profiled and professional classes in secondary schools and in secondary general schools and with admission after 7th grade in professional secondary schools, technical schools and art schools, and who graduate successfully 12th grade during the 2002 - 2003 academic year, shall acquire secondary education and receive a diploma under the conditions and following the procedure of the Public Education Act, without taking the state matriculation examinations referred to in Article 7, Paragraph 1.

(3) (New - SG No. 29/2003) The students referred to in Paragraph 2 shall not take the matriculation examinations envisaged in the school curriculum which was in force at the time when they were admitted to that school. On their own wish they shall have right to take the state matriculation examinations referred to in Article 24, Paragraphs 1 and 2 of the Public Education Act.

§ 2a. (New, SG No. 40/2004) (1) Students who complete successfully their education in

12th grade in the 2003 - 2004 and 2004 - 2005 academic years shall acquire secondary school education and shall receive a diploma under the terms and the procedure of this Act without taking the state matriculation examinations referred to in Article 7.

(2) At their own choice, students shall have the right to take state matriculation examinations under the terms and following the procedure referred to in Article 7.

(3) Students who complete successfully their education in 12th grade in the 2003 - 2004 and 2004 - 2005 academic years shall not take matriculation examinations if such are envisaged by the curriculum of the school which was in effect at the time of their admission to that school.

§ 3. In Article 26, Paragraph 1, item 5 of the Public Education Act (promulgated, SG No. 86/1991; amended SG No. 90/1996, SG Nos. 36, 124, 153/1998) the words "from 8th to 12th grade inclusive" shall be deleted.

§ 4. The Minister of Education, Youth and Science shall issue the ordinance referred to in Article 13 within one month of the entry into force of this Act.

§ 5. This Act shall enter into force on the day of its promulgation in the State Gazette.

§ 6. The implementation of the Act shall be assigned to the Minister of Education, Youth and Science.

TRANSITIONAL AND FINAL PROVISIONS

To the Act Amending and Supplementing the Level of Education, General

Education Minimum and Curriculum Act

(SG No. 95/2002, effective 8.10.2002)

§ 10. The general education minimum shall be introduced from 1st grade for the 2002 - 2003 academic year.

TRANSITIONAL AND FINAL PROVISIONS

to the Act amending and supplementing the Vocational Education and Training Act

(SG No. 74/2009, effective 15.09.2009)

§ 4. In the Level of Education, General Education Minimum and Curriculum Act (Promulgated, SG, No. 67/1999, amended, No. 90 and 95/2002, No. 29/2003, No. 40/2004, No. 41 and 105/2006, No. 50/2008, No. 36/2009) the words "Minister of Education and Science", and "Ministry of Education and Science", shall be replaced by "Minister of Education, Youth and Science", and "Ministry of Education, Youth and Science".